

24CHCV02625 24CHCV02625

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Case Number: 24CHCV02625 Hearing Date: September 3, 2026 Dept: F47

Dept. F47

Date: 9/3/26

Case #24CHCV02625

Elsa

Francisca Navarajo Lopez et al. v. William M. Kamenos, et al.,

Case No. 24CHCV02625

Tentative

Ruling

The hearing on Petitioner Elsa

Francisca Navarajo Lopez's Petition For Approval of Compromise of Claim or

Action or Disposition of Proceeds of Judgment For Minor or Person With a

Disability filed on June 26, 2026 is CONTINUED TO _____ at

_____. Counsel for Petitioner is directed to file and serve supplemental

documentation addressing the issues flagged herein by no later than sixteen

court days prior to the continued hearing date.

I. Background

Claimant

Anthony Javier Alvarado ("Alvarado" or "Claimant"), a disabled adult, by and

through his Guardian Ad Liem, Elsa Francisca Navarajo Lopez ("Plaintiff" or

"Petitioner") alleges as follows:

This action arises out

of a motor vehicle collision that occurred on 4/26/23. Claimant was a passenger in a vehicle that was struck by a vehicle driven by Defendant.

As a result of the collision, Claimant suffered contusion of the right forearm, headaches and pain in his neck and back. Claimant received treatment in the emergency room was discharged the same day.

Claimant later had chiropractic treatment over several months. Claimant has completely recovered from his injuries.

On

7/18/26, Claimant and Elsa Francisca Navarajo Lopez, Claimant's mother and guardian ad litem filed this action against Defendant William M. Kamenos and Martin T Kamenos alleging causes of action for negligence and negligence per se. On 10/31/24, Defendants answered the complaint

On

6/26/26, Petitioner filed the instant petition for approval of a compromise of a pending action of a person with a disability with a special needs trust. The hearing on the petition was originally scheduled for 7/21/26. Due to issues with the petition, including the need for review by the Probate Division, the hearing on the petition was continued to 9/3/26. (See 7/21/26 Minute Order).

II. Legal Standard

"A petition for court approval of a compromise of, or a covenant not to sue or enforce judgment on, a minor's disputed claim; a compromise or settlement of a pending action or proceeding to which a minor or person with a disability is a party; or the disposition of the proceeds of a judgment for a minor or person with a disability under Probate Code sections 3500 and 3600-3613 or Code of Civil Procedure section 372 must be verified by the Petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. Except as provided in rule 7.950.5, the petition must be submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350)." (Cal. Rules of Court, rule 7.950).

“The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance.” (Cal. Rules of Court, rule 7.952(a)).

III. Discussion

Petitioner Elsa Francisca

Navarajo Lopez, in her capacity as guardian ad litem for Anthony Javier Alvarado, seeks Court approval of a settlement between Claimant Anthony Javier Alvarado, on the one hand, and Martin Kamenos and William Kamenos (“Defendants”), on the other hand, in the amount of \$75,000. (Petition, ¶¶ 2 and 10 and 16a.)

A.

The

Special Needs Trust

At the outset, the Probate Department has separately reviewed the Anthony Javier Alvarado Special Needs Trust (“SNT”) under Los Angeles Superior Court Local Rule 4.115, subd. (c) and notes the following issues:

1. The Proposed Trust Instrument

Petitioner

provides the proposed trust instrument at Attachment 18(b)(4), Court's pdf at pp. 53-57. There is a contradiction in Section 1.1 and Section 1.2 regarding who is establishing the SNT. The terms should be clear that the SNT is established by the GAL as authorized by the Court; the Court does not establish nor execute the SNT. The proposed trust instrument does not meet all of the requirements of California Rules of Court Rule 7.903(c) or LASC Rule 4.116(b), specifically, the Court has found the following deficiencies within the proposed trust instrument:

The following

provisions do not comply with the following requirements under CRC 7.903(c):

(4)

Prohibit investments by the trustee other than those permitted under Probate

Code section 2574; Section 2.4 gives broad discretion for investments and does not contain the required prohibition

(5)

Require [the Trustee] to post bond in the amount required under Probate Code section 2320 et seq; Section 2.3 of the proposed trust instrument expressly waives bond

(7)

Require court approval of changes in trustees and a court order appointing any successor trustee; Section 2.2 of the proposed trust instrument lists a successor trustee, but does not require Court confirmation of the appointment of the successor trustee

(8)

Require compensation of the trustee, the members of any advisory committee, or the attorney for the trustee, to be in just and reasonable amounts that must be fixed and allowed by the court. The instrument may provide for periodic payments of compensation on account, subject to the requirements of Probate Code section 2643 and rule 7.755. There are no provisions within the proposed trust agreement regarding compensation

In accordance

with LASC 4.116(b), unless the court otherwise orders for good cause shown, trust instruments for trusts funded by court order must include the following terms:

- (b)(2) Any purchase of a personal

residence for a beneficiary may be made only if authorized by the court pursuant to the rules applicable to conservatorships and guardianships. (See Prob. Code, § 2571);

- (b)(3) Any sale of a personal residence

of the beneficiary may be made only if authorized by the court pursuant to the rules applicable to conservatorships and guardianships. (Prob. Code, § 2540(b).) Such sales must be returned to court for confirmation. (See Prob. Code, § 10300 et seq.); and

- (b)(4) The trustee may not borrow money,

lend money, give security, lease, convey, or exchange any property of the

estate without prior authorization of the court. (Prob. Code, § 2550.)

None of the
required terms are contained in the proposed trust instrument.

Additional
Requirements:

- The trust instrument must include a mandatory payback provision to require, upon the death of the trust beneficiary, that the trust pay back states that have provided medical assistance to the trust beneficiary, up to the amount of remaining trust assets. Section 7.1 of the proposed trust instrument limits reimbursement to California and Section 7.2 of the proposed trust instrument allows for administrative expenses, fees and costs, and final expenses to have priority over payback. The provisions must authorize reimbursement to all states which have provided medical services and must have first priority for repayment without any carve-outs.

The Court also notes
that the proposed Order submitted on June 26, 2026 does not include a copy of the SNT and needs to be corrected

2. Notice

When seeking approval
to fund a special needs trust (SNT), notice of the hearing and service of the petition must be made upon three state agencies including the Dept. of Mental Health, Dept. of Developmental Services, and Dept. of Health Care Services. (Probate Code section 3611(c), or 3602(f) if there is a conservatorship of the estate or guardianship of the estate for plaintiff.) The proof of service attached to the Petition does not include any of the required state agencies and there is no separate proof of service found in the Court's file.

3. Findings

When ultimately
approving the establishing or funding of an SNT from settlement proceeds, the Court must make the following findings pursuant to Probate Code section 3604(b): (1) the SNT beneficiary has a disability which substantially impairs

the individual's ability to provide for her own care or custody and constitutes a substantial handicap; (2) the SNT beneficiary is likely to have special needs that will not be met without the trust; and (3) the money to be paid to the trust does not exceed the amount that appears reasonably necessary to meet the SNT beneficiary's special needs.

At this time, the

Court has sufficient information to find: (1) the SNT beneficiary has a disability which substantially impairs his ability to provide for his own care or custody and constitutes a substantial handicap; specifically, that the SNT beneficiary is diagnosed with severe intellectual disabilities, including but not limited to autism, has limited speech capabilities, and suffers from seizures.

The Court, however,

has insufficient information to find: (2) the SNT beneficiary is likely to have special needs that will not be met without the Trust; specifically, there is insufficient information presented as to whether the beneficiary would jeopardize his eligibility for income-dependent benefits if the settlement were received outside of the Trust. The Court does recognize that there is currently a Medi-Cal lien and can infer that the SNT beneficiary is a Medi-Cal recipient, however the amount proposed to be funded into the SNT is significantly below the current Medi-Cal asset limits; or (3) the money to be paid to the trust does not exceed the amount that appears reasonably necessary to meet the SNT beneficiary's special needs; specifically, there is no information presented regarding what the SNT will cover and the anticipated costs of such services.

The Court also notes

that the proposed Order submitted on June 26, 2026 does not include any of these required findings and needs to be corrected.

4. Trustee and Bond

The proposed initial trustee is Elsa Francisco Navarajo Lopez.

Normally, bond must be required of a trustee unless the trustee is a corporate fiduciary/trust company. (California Rules of Court,

Rule 7.903(c)(5), Probate Code sections 2320, 15602.) The proposed trustee does not meet that requirement and the amount to be funded into the SNT is more than the applicable threshold for bond waiver. Petitioner should provide the applicable bond calculation.

B.

The

Compromise

The

Court has reviewed the petition filed June 26, 2026.

As

noted in the Court's 7/21/26 ruling, there is an issue with the service of the petition on counsel for Defendants. The

Court noted that the proof of service indicates that the petition was

electronically served on defense counsel at: ; however, the email address

listed for defense counsel in eCourt is . (See 7/21/26 Minute Order). The Court further noted that documents filed

by defense counsel do list as the electronic address for

the firm. Id. The Court ordered that at least 16 court days

before the continued hearing date, Plaintiffs' counsel must serve the petition,

notice of continuance and all supplemental papers on both of the foregoing

email addresses. Id. There is no evidence before the Court that

Plaintiffs' counsel complied with the foregoing order (e.g. a proof of service

has not been filed).

Additionally,

the Court noted that it is not clear if the settlement for both Claimant and

the co-plaintiff, who is also Claimant's mother/guardian ad litem, is

\$75,000.00 total or \$75,000.00 each.

(See 7/21/26 Minute Order). The

Court noted that Nos.10 and 11 in the petition indicate that each plaintiff is

receiving \$75,000.00. Id. However, No.17.c., e. and f. fail to

acknowledge counsel is also representing Elsa Francisca Navarizo Lopez, her

settlement and/or receipt of attorney fees from same. Id.

The Court ordered that at least 16 court days before the continued

hearing date, Plaintiffs' counsel must file and serve a declaration explaining

the foregoing. Id. Plaintiffs' counsel has not filed the

required declaration.

Petitioner explains that, after payment of medical expenses, attorney's fees and costs from the proceeds of the settlement, there is a balance of \$38,039.22 which will be initially funded into the Special Needs Trust. (Petition, ¶ 18(b)(4). As noted above, there are issues/defects with the proposed Special Needs Trust which must be addressed.

IV. Conclusion

The hearing on the petition will be continued to allow Plaintiffs' counsel to address the issues noted in the 7/21/26 ruling as set forth above, which Plaintiffs' counsel failed to timely address with regard to the instant hearing.

Additionally, Plaintiffs' counsel must address the issues noted above with regard to the Special Needs Trust which the balance of the settlement proceeds are proposed to fund.

Supplemental papers and/or documentation addressing the issues set forth above must be filed and served at least 16 court days before the continued hearing date.